



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO
OFFICE OF THE SANGGUNIANG BAYAN

September 3, 2025

RECEIVED
OFFICE OF THE SANGGUNIANG
PANLALAWIGAN

HON. ERIC O. SIBUMA

*Vice Governor/ Presiding Officer
Sangguniang Panlalawigan- La Union
Capitol, San Fernando City, La Union*

BY:
DATE: 9-3-25 TIME: 2:41

Sir:

Transmitting herewith is Municipal Ordinance No. 04-2025, "An Ordinance Regulating the Passage of Slow-Moving Vehicles on National Highways Within the Municipality of Agoo, La Union and Providing Penalties for Violations Thereof."

Your favorable action hereon is highly appreciated. Thank you very much!

Respectfully yours,


FRANCISCO A. VERGARA
Secretary to the Sanggunian

Noted:


ANTONIO A. ESLAO
Municipal Vice Mayor



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO
OFFICE OF THE SANGGUNIANG BAYAN

CERTIFICATION

To Whom It May Concern:

This is to certify that a Public Hearing was conducted last August 12, 2025 at 8:00 o' clock in the morning at the Conference Hall, Farmers Building on the passage of **MUNICIPAL ORDINANCE NO. 04, 2025 ENTITLED "AN ORDINANCE REGULATING THE PASSAGE OF SLOW-MOVING VEHICLES ON NATIONAL HIGHWAYS WITHIN THE MUNICIPALITY OF AGOO, LA UNION AND PROVIDING PENALTIES FOR VIOLATION THEREOF."**

Issued for purpose of legislative review by the Sangguniang Panlalawigan of La Union.

2nd day of September 2025, Agoo, La Union.


FRANCISCO A. VERGARA
Secretary to the Sanggunian



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MUNICIPAL ORDINANCE NO. 04 - 2025

Authored by: SBM MARK ANTHONY T. REFUGIA
Sponsored by: SBM ROBERT A. FONTANILLA

AN ORDINANCE REGULATING THE PASSAGE OF SLOW-MOVING VEHICLES ON NATIONAL HIGHWAYS WITHIN THE MUNICIPALITY OF AGOO, LA UNION AND PROVIDING PENALTIES FOR VIOLATION THEREOF

EXPLANATORY NOTE

WHEREAS, Section 16 of Local Government Code provides that "Local Government Units shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among their residents, maintain peace and order, and preserve the comfort and convenience of their inhabitants".

WHEREAS, Section 54 of the Land and Transportation Code provides that "no person shall drive his motor vehicle in such a manner as to obstruct or impede the passage of any vehicle, nor, while discharging or taking on passengers or loading or unloading freight, obstruct the free passage of other vehicles on the highway".

WHEREAS, to regulate the daily traffic and prevent the incidence of road accidents, which mostly involve small or slow-moving vehicles;

NOW THEREFORE, BE IT ORDAINED BY THE SANGGUNIANG BAYAN OF AGOO, LA UNION IN REGULAR SESSION ASSEMBLED:

SECTION 1. TITLE. This Ordinance shall be known as the **SLOW-MOVING VEHICLES ORDINANCE OF THE MUNICIPALITY OF AGOO, LA UNION.**

SECTION 2. DEFINITION OF TERMS

- a) **Shoulder** – is that portion of the thoroughfare either National, Provincial, or Municipal roads from the edge of the concrete lane.
- b) **Slow Moving Vehicles/SMVs** - a vehicle or caravan of vehicles operated on a street or highway at speeds slower than that of other motorized equipment, heavy equipment, trailers, tractors, "kuliglig", "kulong-kulong", all tricycles, bicycles, electric bikes, "kalesa", motorcycles with 150 cc engine and below, and the like either manually or electronically operated.
- c) **Right Outer Lane** - is the right shoulder of the highway.
- d) **Thoroughfare** – is a public way of at the main road or public road or highway.
- e) **National Roads** – roads in the Municipality that form parts of the main trunk line system and directly connect three or more major cities or municipalities and metropolitan areas with a population of at least 100,000.

SECTION 3. MANDATE. All slow-moving vehicles proceeding upon a highway shall be driven in the right outer lane for traffic or as close as practicable to the right edge or curb, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

SECTION 4. REGULATED ACT. All slow-moving vehicles traversing along the highway within the territorial jurisdiction of Agoo, La Union are prohibited to pass at the inner lanes of the highways except to overtake on justifiable circumstances or on emergency cases.

FRANCISCO A. VERGARA
Secretary to the Sanggunian

ANTONIO A. ESLAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor

SBM STEVE LAWRENCE G. LOMBOY

SBM JEAN P. BOADO

SBM ROSELIO G. GARABILES

SBM ERWIN B. CASTRO

SBM ROSEPHINE G. CORTEZ

SBM REYNALDO V. OLLER

SBM ROBERT A. FONTANILLA

SBM ANTHONY P. QUERO

SBM PRISCILLA B. KOMIYA

SBM MARK ANTHONY T. REFUGIA



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SECTION 5. AUTHORITY TO IMPLEMENT THIS ORDINANCE. The Agoo Public Safety and Order Office (APSOO) in coordination with the Agoo PNP shall be primarily responsible in the effective implementation of this ordinance.

SECTION 6. PENALTY CLAUSE. Any driver who shall be found violating this Ordinance shall suffer the penalty of a fine in the amount of Five Hundred Pesos (P500.00) in the first offense and succeeding offenses.

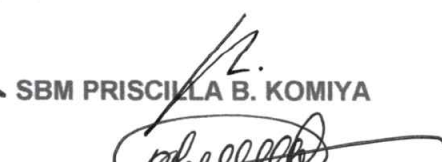
SECTION 7. SEPARABILITY CLAUSE. If for any reason, any provision of this ordinance shall be held unconstitutional or not valid by any court of competent jurisdiction, such judgement shall not affect or impair the other provisions or part thereof which shall continue to be in force and in effect.

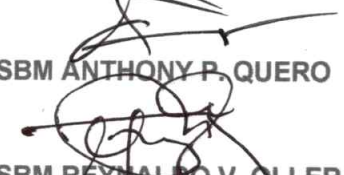
SECTION 8. REPEALING AND AMENDATORY CLAUSE. All municipal ordinances, resolutions, rules, and regulations or any part thereof which are in conflict with or inconsistent with the provisions of this ordinance are hereby repealed and/or modified accordingly.

SECTION 9. EFFECTIVITY – This ordinance shall take effect in accordance with the provisions of the Local Government Code of 1991.

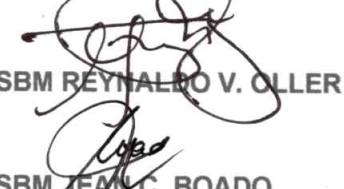
ENACTED: This 20th day of August 2025 at Agoo, La Union.

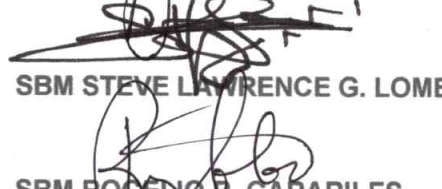

SBM MARK ANTHONY T. REFUGIA

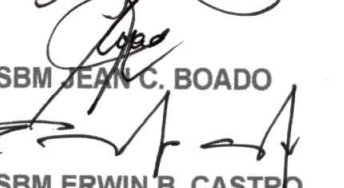

SBM PRISCILLA B. KOMIYA

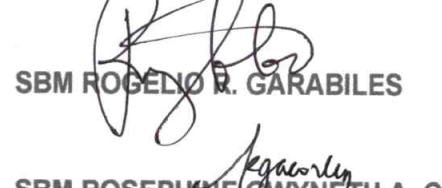

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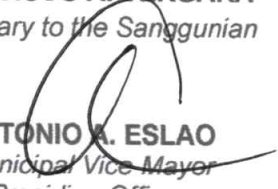

SBM ROGELIO R. GARABILES


SBM ERWIN B. CASTRO
Liga ng mga Barangay President


SBM ROSEPHINE GWYNETH A. CORTEZ
SK Federation President

I HEREBY CERTIFY THAT THIS IS TRUE AND ACCURATE COPY OF THE ORDINANCE DULY
ENACTED BY THE SANGGUNIANG ON AUGUST 20, 2025.


FRANCISCO A. VERGARA
Secretary to the Sanggunian


ANTONIO A. ESLAO
*Municipal Vice Mayor
Presiding Officer*


FRANK O. SIBUMA
Municipal Mayor
Date Signed: 9/1/25